

STATE OF NEW YORK

3827--A

2025-2026 Regular Sessions

IN SENATE

January 30, 2025

Introduced by Sens. HOYLMAN-SIGAL, FERNANDEZ, SALAZAR -- read twice and ordered printed, and when printed to be committed to the Committee on Internet and Technology -- reported favorably from said committee and committed to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the state technology law, in relation to banning the use of biometric identifying technology in schools

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivisions 2, 3 and 4 of section 106-b of the state technology law, as added by chapter 2 of the laws of 2021, are amended to
2 read as follows:

3
4 2. a. Except as authorized in paragraph b of this subdivision, public
5 and nonpublic elementary and secondary schools, including charter
6 schools, shall be prohibited from purchasing or utilizing biometric
7 identifying technology for any purpose, including school security[
8 ~~until July first, two thousand twenty-two or until the commissioner of~~
9 ~~education authorizes such purchase or utilization as provided in subdi-~~
10 ~~vision three of this section, whichever occurs later~~].

11 b. Schools may utilize biometric identifying technology for the
12 following purposes: (i) fingerprint identification of prospective school
13 employees where utilized for the purpose of compliance with a provision
14 of the education law or the regulations of the commissioner of education
15 [~~or~~]; (ii) fingerprint identification of teachers, administrators and
16 students for the purpose of securely logging into a digital device for
17 academic and administrative purposes; or (iii) to exclusively identify
18 employees that have consented in writing to the use of such technology
19 or in the case of employees represented under article fourteen of the
20 civil service law, where the employee organization representing such
21 employee has consented in writing to the use of such technology.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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~~[3. a. The commissioner of education shall not authorize the purchase or utilization of biometric identifying technology, including but not limited to facial recognition technology, without the director first issuing a report prepared in consultation with the state education department, making recommendations as to the circumstances in which the utilization of such technology is appropriate in public and nonpublic elementary and secondary schools, including charter schools, and what restrictions and guidelines should be enacted to protect individual privacy, civil rights, and civil liberty interests. Such report shall be made public and presented to the governor, the temporary president of the senate, and the speaker of the assembly, and shall consider, evaluate and present recommendations concerning:~~

~~i. the privacy implications of collecting, storing, and/or sharing biometric information of students, teachers, school personnel and the general public entering a school or school grounds;~~

~~ii. the potential impact of the use of biometric identifying technology on student civil liberties and student civil rights, including the risks and implications of the technology resulting in false facial identifications, and whether the risks of false facial identifications differs for different subgroups of individuals based on race, national origin, gender, age and other factors, and any other reasonable accuracy concerns with respect to technology;~~

~~iii. whether, and under what circumstances, such technology may be used for school security and the effectiveness of such technology to protect students and school personnel;~~

~~iv. whether, and under what circumstances and in what manner, information collected may be used by schools and shared with students, parents or guardians, outside agencies including law enforcement agencies, individuals, litigants, the courts, and any other third parties;~~

~~v. the length of time biometric information may be retained and whether, and in what manner, such information may be required to be permanently destroyed;~~

~~vi. the risk of an unauthorized breach of biometric information and appropriate consequences therefor;~~

~~vii. expected maintenance costs resulting from the storage and use of facial recognition images and other biometric information, including the cost of appropriately securing sensitive data, performing required updates to protect against an unauthorized breach of data, and potential costs associated with an unauthorized breach of data;~~

~~viii. analysis of other schools and organizations, if any, that have implemented facial recognition technology and other biometric identifying technology programs;~~

~~ix. the appropriateness and potential implications of using any existing databases, including but not limited to, local law enforcement databases, as part of biometric identifying technology;~~

~~x. whether, and in what manner such biometric identifying technology should be assessed and audited, including but not limited to, vendor datasets, adherence to appropriate standards of algorithmic fairness, accuracy, and other performance metrics, including with respect to subgroups of persons based on race, national origin, gender, and age;~~

~~xi. whether, and in what manner, the use of such technology should be disclosed by signs and the like in such schools, as well as communicated to parents, guardians, students, and district residents; and~~

~~xii. existing legislation, including but not limited to section two-d of the education law, that may be implicated by or in conflict with biometric technology to ensure the maintenance of records related to the~~

~~1 use of such technology, protect the privacy interests of data subjects,~~
~~2 and avoid any breaches of data.~~

~~3 b. The director, in consultation with the commissioner of education,~~
~~4 shall consult with stakeholders and other interested parties when~~
~~5 preparing such report. The state education department, the division of~~
~~6 criminal justice services, law enforcement authorities and the state~~
~~7 university of New York and the city university of New York shall, to the~~
~~8 extent practicable, identify and provide representatives to the office~~
~~9 of information technology, at the request of the director, in order to~~
~~10 participate in the development and drafting of such report.~~

~~11 4. The director shall, via scheduled public hearings and other~~
~~12 outreach methods, seek feedback from teachers, school administrators,~~
~~13 parents, individuals with expertise in school safety and security, and~~
~~14 individuals with expertise in data privacy issues and student privacy~~
~~15 issues, and individuals with expertise in civil rights and civil liber-~~
~~16 ties prior to making such recommendations.]~~

§ 2. This act shall take effect immediately.